

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {collateralActionCounty}
CAUSE NO. {collateralActionCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA,

v.

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

REQUEST TO EXPUNGE A COLLATERAL ACTION PURSUANT TO I.C. 35-38-9-9.5

STATUTORY AUTHORITY

I.C. 35-38-9-9.5 — After an original expungement order is issued, a person may request expungement of an action or proceeding, including an administrative proceeding, factually or legally related to the arrest, charge, allegation, conviction or adjudication. This expressly includes a seizure, a civil forfeiture and a petition for specialized driving privileges.

I.C. 35-38-9-0.5 — Recorded on the track as authority for this mechanism. The registry does not state what this section supplies beyond listing it; no gloss is invented here.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of [COUNTY TO BE CONFIRMED] County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this request occurred in [COUNTY TO BE CONFIRMED] County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, IN 00000.

4. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Petitioner was charged with [CHARGE DESCRIPTION TO BE CONFIRMED] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED].
[DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Petitioner may be eligible for expungement on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Request and enter an Order directing the expungement of the records of the collateral action identified in this request in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, IN 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

STATE OF INDIANA
IN THE {courtName} COURT
COUNTY OF {collateralActionCounty}
CAUSE NO. {collateralActionCauseNumber}
COUNTY OF [COUNTY TO BE CONFIRMED]

STATE OF INDIANA v. JAMIE Q. SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Request filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, [COUNTY TO BE CONFIRMED] County Court of Common Pleas, [ARRESTING AGENCY], and all other criminal justice agencies with records pertaining to this matter are hereby directed to expunge all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this request:

- Certified copy of the original expungement order (participant obtains from the clerk; LegalEase does not inspect it)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.